

		procedural matters, typically to control the court's own process, proceedings and orders, but also may relate to situations in which the rights and powers of the parties have been established by substantive law or court order but workable means by which those rights may be enforced or powers implemented have not been granted by statute. [Citations.]” [<i>Phillips, Spallas & Angstadt, LLP v. Fotouhi</i> (2011) 197 Cal.App.4th 1132, 1142.] Here, however, the rights of Defendant to vacate the default and default judgment have been implemented and covered by the Code of Civil Procedure; and thus, citation to CCP §187 is unnecessary. For these reasons, the motion is DENIED. Plaintiff to give notice.
10 7	Armstrong vs. DH Dental Employment Services, LLC, 25-01508012	<i>Case Management Conference</i>
10 8	Prindiville vs. Golden Rain Foundation of Laguna Woods, 23-01315296	Defendant Golden Rain Foundation of Laguna Woods (“Defendant”) moves for summary judgment or, in the alternative, summary adjudication on the Third Amended Complaint (TAC) of plaintiff Jim Prindiville (“Plaintiff”). The Court notes that Plaintiff’s counsel of record has been ordered ineligible to practice law. Defense counsel provided notice of counsel’s ineligibility to Plaintiff on April 8, 2026 by phone and on April 9 by mail. On April 23, 2026, the Court continued the hearing on Defendant’s Motion for Summary Judgment to provide Plaintiff with further opportunity to file any opposition. Defendant served a Notice of Ruling on April 29, 2026 on Plaintiff directly via mail, giving Plaintiff notice of the continued hearing date and Plaintiff’s deadline to file any opposition papers. (ROA 228.) To date, Plaintiff has not opposed the Motion for Summary Judgment. Former counsel for Plaintiff, in a declaration filed on April 23, 2026, contends that the moving papers must be re-served and/or the hearing continued so that Plaintiff can secure new legal counsel, as the moving papers were served on former counsel when his law license was suspended and were not served on Plaintiff personally with adequate notice.

	The Court, on its own motion, will take judicial notice of the California State Bar's records unless any party demonstrates that judicial notice would be improper. (State Bar of California online attorney profile https://apps.calbar.ca.gov/attorney/Licensee/Detail/183912 [as of June 11, 2026].) (See Evid. Code, § 455(b); see also Evid. Code, § 452(h); <i>People v. Vigil</i> (2008) 169 Cal.App.4th 8, 12, fn. 2 [taking judicial notice of State Bar records, including notation of date attorney was not eligible to practice law]; <i>People v. Riggs</i> (2026) 119 Cal.App.5th 213, 219, fn. 6 [same].) The State Bar records show that Plaintiff's former counsel was not ordered inactive until February 10, 2026. Thus, when the Motion for Summary Judgment papers were served on former counsel on December 17, 2025, he was still active and acting as Plaintiff's representative in this matter and Defendant's service on Plaintiff's then-active counsel was proper and timely. In addition, Plaintiff has now been afforded a second opportunity to oppose the Motion, request further continuance, or obtain new counsel and has failed to do so. Thus, the Court finds no further continuance to be warranted. Here, the TAC asserts a single cause of action for breach of fiduciary duties. The TAC alleges that on January 23, 2021, Plaintiff took bus transportation provided by Defendant and on the return trip, the bus driver opened the exit doors but did not get up to assist passengers who were obviously disabled off the bus. When Plaintiff exited, he fell because the ramp was not fully extended. Plaintiff alleges that the fall caused him pain and suffering and irreparable damage to his prosthetic hip. He further alleges it caused him to become mentally incompetent until at least March 27, 2001 when he was first able to care for himself without skilled nursing care, as he was prescribed and given full time care from the date of his fall and he could not mentally or physically care for himself from March 4 through March 26, 2021 due to the medication he was prescribed. Through deemed admissions, Plaintiff admits that Defendant never breached a fiduciary duty owed to Plaintiff, that he was not mentally incompetent at any time between the dates of January 23, 2021 and March 26, 2021, that his complaint was filed more than two years after the date of the incident, and that his claims in connection with the incident are time-barred by the statute of limitations set forth in Code of Civil Procedure section 335.1. These admissions are fatal to Plaintiff's claim.
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		"The Code of Civil Procedure does not specify a statute of limitations for breach of fiduciary duty." (<i>Thomson v. Canyon</i> (2011) 198 Cal.App.4th 594, 606.) "There is a limitation to the applicability of this statute of limitations, as with any statute of limitations. It is widely understood that a plaintiff is not permitted to evade a statute of limitations by artful pleading that labels a cause of action one thing while actually stating another. California courts therefore look to the gravamen of the cause of action." (<i>Ibid.</i>) While Plaintiff labels his cause of action as one for breach of fiduciary duty, the gravamen of his action is that the acts of Defendant's employee were negligent. Thus, the two-year statute of limitations period governing negligence applies. Plaintiff's action was filed after the two year time period lapsed. Plaintiff has also admitted that facts underlying the alleged tolling of the statute of limitations due to lack of mental capacity alleged in the TAC are false. Further, to the extent Plaintiff has any viable breach of fiduciary duty cause of action against Defendant, i.e., he can show that there was a fiduciary relationship, he has admitted that no breach of such relationship occurred. All of the above demonstrate that Plaintiff's cause of action for breach of fiduciary duty fails as a matter of law. Therefore, Defendant's Motion for Summary Judgment is GRANTED. Defendant to prepare the appropriate order and proposed judgment. <i>Defendant to give notice.</i>
10 9	Potter vs. Brookdale Irvine, 22-01278030	<u>MSJ #1</u> Defendant, Brookdale Living Communities, Inc. ("Brookdale Living"), moves for summary judgment, or in the alternative, summary adjudication of the four causes of action asserted in the operative Second Amended Complaint of Plaintiffs, Betty Gregory, in and through her Successor-In-Interest, Kimberly Potter and Kimberly Potter. "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-